

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANDRE BETHEA,

INDEX NO:
DATE PURCHASED:

Plaintiff,

-against-

THE CITY OF NEW YORK and THE NEW
YORK CITY POLICE DEPARTMENT POLICE
OFFICER KYLE CREVATAS, POLICE OFFICER,
CRYSTAL ROMERO, DETECTIVE JOSEPH
FRANCO, POLICE OFFICER JOHN DOE ONE,
and POLICE OFFICER JOHN DOE TWO,

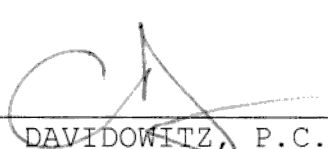
Defendants.

-----X

TO THE ABOVE-MENTIONED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 1, 2021


CRAIG L. DAVIDOWITZ, P.C.,
Attorney for Plaintiff
Office and P.O. Address
450 Seventh Avenue, Suite 2702
New York, New York 10123
Tel: (212) 378-2051
Fax: (212) 378-2054

Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, New York 10007

POLICE OFFICER KYLE CREVATAS

1 Police Plaza Path
New York, NY 10007

POLICE OFFICER CRYSTAL ROMERO

1 Police Plaza Path
New York, NY 10007

DETECTIVE JOSEPH FRANCO

1 Police Plaza Path
New York, NY 10007

POLICE OFFICER JOHN DOE ONE

1 Police Plaza Path
New York, NY 10007

POLICE OFFICER JOHN DOE TWO

1 Police Plaza Path
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANDRE BETHEA,

Plaintiffs,

COMPLAINT

-against-

Index No:

Date Purchased:

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KYLE
CREVATAS, POLICE OFFICER CRYSTAL ROMERO,
DETECTIVE JOSEPH FRANCO, POLICE OFFICER
JOHN DOE ONE, and POLICE OFFICER JOHN
DOE TWO,

Defendants,

-----X

Plaintiff ANDRE BETHEA by his attorney, CRAIG L. DAVIDOWITZ,
P.C., hereby respectfully alleges for the complaint against THE
CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, NEW YORK
DISTRICT ATTORNEY'S OFFICE, POLICE OFFICER KYLE CREVATAS, POLICE
OFFICER CRYSTAL ROMERO, DETECTIVE JOSEPH FRANCO, POLICE OFFICER
JOHN DOE ONE and POLICE OFFICER JOHN DOE TWO, hereinafter referred
to as "defendants" as follows:

NATURE OF THE INSTANT ACTION

1. This is a civil action, brought pursuant to 42 U.S.C.
§§ 1983 and 1988 for violations of the Fourth and Fourteenth
Amendments to the United States Constitution, and under the common
law as against the defendants.

2. The instant action seeks to hold the defendants liable

for physical and emotional, economic injuries, past pain and suffering, future pain and suffering, false arrest, wrongful detainment in custody, assault, false imprisonment, harassment, unjust malicious prosecution negligence, and misconduct. The unlawful actions of the defendants, alleged hereunder, resulted from affirmative *de facto* municipal policies, practices and customs to violate the constitutional rights of criminal suspects and defendants, or from deliberate indifference by policy-making officials, acting on behalf of the City of New York, to such violations.

3. As Plaintiff will demonstrate hereunder, as a matter of policy, the actions of, which violated the rights of the plaintiff, reflects a corrupt culture of misconduct indicative of New York Police Department police officers that has long existed at New York City Police precincts. Despite the plaintiff having voluntarily provided the defendants with a verbal statement evidencing that he did not commit the alleged crime, the plaintiff was placed under arrest by Police Officer Kyle Crevatas on June 4, 2018 at approximately 3:44 p.m at the South East corner of Sullivan Street and Washington Square South, City and State of New York.

4. By this action, the plaintiff seeks redress for the violations of his civil rights and to recover damages he suffered as a result of the incidence complained of hereunder, including but not limited to legal fees, costs and expenses associated with defending the criminal proceedings, loss of reputation, costs and expenses associated with prosecuting the civil matter, punitive damages, mental anguish, pain and suffering, inconvenience, humiliation, and fear.

JURISDICTION AND VENUE

5. Jurisdiction is conferred upon this Court as a court

of general jurisdiction that may hear federal claims and the federal claims herein arise from analogous state law causes of action and this court is authorized to redress the deprivation under color of law, statute, ordinance, regulation, custom and usage of a right, privilege, and immunity secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. Venue is proper in County of New York as the location of the incident herein.

PARTIES

7. Plaintiff ANDRE BETHEA is a resident of the State of New York, County of Queens.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. Upon information and belief, it is authorized under the laws of the State of New York to maintain a police department, the New York Police Department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers. The New York City Police Department's operations include the operations as described herein.

9. Defendant New York City Police Department is an agency of the City of New York. The New York City Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

10. Police Officer Kyle Crevatas, Shield No: 24662 at all

relevant times, is and was a commissioned officer employed by the New York Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within his scope of employment. Police Officer Crevatas is sued in both his individual and official capacity.

11. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer Krevatas, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York City Police Department. The New York City Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

12. Police Officer Crystal Romero, Shield No: 31314 at all relevant times, is and was a commissioned officer employed by the New York City Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within her scope of employment. Police Officer Romero is sued in both her individual and official capacity.

13. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer Romero, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York Police Department. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

14. Detective Joseph Franco, Shield No: 7972 at all relevant times, is and was a commissioned officer employed by the New York City Police Department, and acted toward Plaintiff under color of

statutes, ordinances, customs, and usage of the City of New York and acted within his scope of employment. Detective Franco is sued in his individual and official capacity.

15. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Detective Franco, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York City Police Department. The New York Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

16. Police Officer John Doe One, at all relevant times, is and was a commissioned officer employed by the New York City Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within his/her scope of employment. Police Officer John Doe One is sued in both his/her individual and official capacity.

17. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer John Doe One, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York City Police Department. The New York City Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

18. Police Officer John Doe Two, at all relevant times, is and was a commissioned officer employed by the New York City Police Department, and acted toward Plaintiff under color of statutes, ordinances, customs, and usage of the City of New York and acted within his/her scope of employment. Police Officer Jon Doe Two is

sued in both his/her individual and official capacity.

19. Defendant New York City Police Department is an agency of the City of New York. Upon information and belief, Officer John Doe Two, a defendant named hereunder, holds a supervisory position as an agent and employee of the New York City Police Department. The New York City Police Department is legally responsible for torts its agents and employees commit within the scope of his/her employment and/or under color of law.

20. At all relevant times, defendant's City of New York and the New York City Police Department were responsible for the policy, practice, supervision, implementation, and conduct of all New York City Police Department matters and were responsible for the appointment, training, supervision, and conduct of all New York City Police Department employees. In addition, defendants City of New York and the New York Police Department were responsible for ensuring that its employees, including Officer Crevatas, Officer Romero, Detective Franco, Officer John Doe One, and Officer John Doe Two obey the laws of the United States and the laws of the State of New York.

JURY DEMAND

21. Pursuant to the Seventh Amendment of the Constitution of the United States, Mr. Bethea requests a jury trial on all issues and claims set forth in this Complaint.

FACTUAL ALLEGATIONS

22. Upon information and belief, On June 4, 2018 at approximately 2:30 p.m., the plaintiff was watching a basketball

game at a basketball court on 6th avenue between West 3rd and West 4th Street, City and State of New York.

23. Upon information and belief, the plaintiff then proceeded to the chess tables at Washington Square Park near MacDougal Street and West 4th Street, City and State of New York, where he remained for a period of time.

24. Upon information and belief, the plaintiff proceeded from the chess tables at the above location to the Washington Square Park bathrooms in the City and State of New York, where he remained for a period of time.

25. Upon information and belief, on June 4, 2018 at approximately 3:30 p.m., the plaintiff departed from the Washington Square Park bathrooms and proceeded to LaGaurdia Place and was walking towards Bleeker Street, in the City and State of New York.

26. Upon information and belief, on June 4, 2018 at approximately 3:40 p.m. the plaintiff was approached by two police officers who jumped out of an unmarked van and ordered the plaintiff to halt.

27. Upon information and belief, on June 4, 2018 at approximately 3:44 p.m. the two police officers grabbed the plaintiff's groin area in an effort to look for any illegal contraband and placed him into custody.

28. Upon information and belief, on June 4, 2018, the two officers placed the plaintiff in the unmarked van where he remained with other persons in custody as the officers proceeded

to make additional arrests.

29. Upon information and belief, on June 4, 2018, the plaintiff was taken to New York Police Service Area 4, 130 Avenue C, New York, NY 10009, where he was arrested by Police Officer Kyle Crevatas and was assigned arrest number M18630632. The plaintiff was charged with PL 220.16(1), one (1) count of criminal possession of a controlled substance in the third degree, and PL 220.39(1), one (1) count of criminal sale of a controlled substance in the third degree. He was then processed, fingerprinted, photographed, retinal scanned and put in a holding cell with other persons in custody for approximately six hours.

30. Upon information and belief, on June 4, 2018, the plaintiff was interrogated by the New York City Police Department officers and was asked about issues relating to homicides, gun possession and drugs.

31. Upon information and belief, Detective Franco allegedly observed plaintiff hand another individual, two small plastic bags containing crack/cocaine in return for US currency.

32. Upon information and belief, the felony complaint as against plaintiff was based on Police Officer Crevatas being informed by Detective Franco that Detective Franco observed the transaction.

33. Upon information and belief, on June 4, 2018, the plaintiff was taken to central booking at 100 Centre Street, New York, New York 10007, where he was processed again and spoke to his legal aid attorney.

34. Upon information and belief, plaintiff was given bail, but was unable to pay it. The plaintiff was taken to the Manhattan Detention Complex ("Tombs") at 125 White Street, New York, New York 10013, where he remained incarcerated for two weeks.

35. Upon information and belief, plaintiff was indicted by a Grand Jury for criminal sale of a controlled substance in the third degree in violation of Penal Law 220.39(1).

36. Upon information and belief, the plaintiff was transferred from the Manhattan Detention Complex to Riker's Island. The plaintiff remained incarcerated for a total of approximately forty-five (45) days and was released from custody on July 28, 2018.

37. Upon information and belief, on August 30, 2018, all criminal charges against the plaintiff were dismissed by the Honorable Abraham Clott, of the Supreme Court of the State of New York as the arrest and prosecution were deemed a nullity.

38. Upon information and belief, the charges against plaintiff were dismissed based on Detective Franco's false observations making up the criminal charges filed against the plaintiff.

39. Upon information and belief, Detective Franco was charged with perjury and official misconduct and was suspended for making up details that led to arrests, falsely arresting people, framing individuals, lying to judges, prosecutors and his own colleagues and offering false instruments about people

selling drugs in lower Manhattan while assigned to the Manhattan South Narcotics Division as was the case herein.

FIRST CAUSE OF ACTION

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. §1983
AGAINST DEFENDANTS THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KYLE CREVATAS, POLICE OFFICER
CRYSTAL ROMERO, DETECTIVE JAMES FRANCO and POLICE OFFICER JOHN
DOE ONE AND POLICE OFFICER JOHN DOE TWO.

40. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 39 with the same force and effect as if fully set forth herein.

41. Defendant City of New York and its agents, servants and employees, including but not limited to defendants The New York City Police Department, Police Officer Kyle Crevatas, Police Officer Crystal Romero, Detective Joseph Franco, Police Officer John Doe One, and Police Officer John Doe Two, deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. §1983.

42. All of the aforementioned acts of all defendants named herein were carried out under the color of state law.

43. Police Officer Crevatas carried out the acts complained of herein in his official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct

violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

44. Police Officer Crevatas carried out the acts complained of in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York Police Department, as a ranking officer of the New York City Police Department.

45. Police Officer Romero carried out the acts complained of herein in her official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and her conduct violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

46. Officer Romero carried out the acts complained of in her capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York City Police Department, as a ranking officer of the New York City Police Department.

47. Detective Franco carried out the acts complained of herein in his official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights which a reasonable person would have known.

48. Detective Franco carried out the acts complained of in his capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New

York and the New York City Police Department, as a ranking officer of the New York City Police Department.

49. Police Officer John Doe One carried out the acts complained of herein in his/her official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights whih a reasonable person would have known.

50. Police Officer John Doe One carried out the acts complained of in his/her capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York City Police Department, as a ranking officer of the New York City Police Department.

51. Police Officer John Doe Two carried out the acts complained of herein in his/her official capacity as a police officer with the actual and/or apparent authority attendant thereto under the scope of his employment with the City of New York and his conduct violated plaintiff's statutory and constitutional rights whih a reasonable person would have known.

52. Police Officer John Doe Two carried out the acts complained of in his/her capacity as a police officer, pursuant to the customs, usages, practices, procedures, and the rules of defendant's City of New York and the New York City Police Department,

53. All defendants, collectively and individually, while acting under color of state law, engaged in unconstitutional

conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality's authority, which is forbidden by the Constitution of the United States.

54. As a result of the defendants' conduct, which inherently violated the Constitution of the United States, the conduct caused the plaintiff significant harm and injury.

55. As a result of the defendants' unconstitutional conduct, plaintiff demands judgment against all defendants in a sum of money to be determined at trial.

SECOND CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS UNDER 42 U.S.C. § 1983 ARISING FROM DEFENDANTS' MALICIOUS PROSECUTION OF THE PLAINTIFF

56. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 55 with the same force and effect as if fully set forth herein.

57. The defendants initiated a criminal proceeding against plaintiff, the proceeding terminated in plaintiff's favor, there was no probable cause for the criminal charges and the defendants acted maliciously.

58. Plaintiff was caused to suffer a post arraignment deprivation of liberty and restraint having been held in custody by the defendants, defendant officers and detective in violation of plaintiff's Fourth Amendment rights.

59. The defendants arrested plaintiff on June 4, 2018 and initiated a criminal proceeding against plaintiff shortly thereafter.

60. The criminal proceeding was terminated in plaintiff's favor on August 30, 2018 as the per the Certificate of Disposition Dismissal, the dismissal was a termination of the criminal action in favor accused and pursuant to section 160.60 of the criminal procedure law. See the Certificate of Disposition Dismissal annexed hereto as Exhibit "A".

61. Defendants did not have probable cause to arrest the plaintiff as the arrest was based on an alleged observation of plaintiff in possession of and attempting to accept currency for the sale of a narcotic which was based on misrepresentation, falsification of evidence and malice.

62. Defendants acted maliciously by not making a full and complete statement of the facts to a Grand Jury and the District Attorney, by misrepresenting and falsifying evidence, by withholding evidence, by committing perjury and fraud and by acting in bad faith as the police officers and Detective Franco filed falsified instruments/documents/DD5's about any alleged observations regarding the acts resulting in the charges as against the plaintiff.

63. The New York City Police Department, its officers and detectives acted maliciously in arresting the plaintiff without probable cause and procuring an indictment based on fraud and bad faith as Detective Franco never observed plaintiff possess or sell any illegal narcotic.

64. Police Officer Kyle Crevatas acted maliciously in arresting the plaintiff without probable cause and prosecuting and procuring an indictment based on fraud and bad faith and with actual malice.

65. Police Officer Crystal Romero acted maliciously in arresting the plaintiff without probable cause and prosecuting and procuring an indictment based on fraud and bad faith and with actual malice.

66. Detective Joseph Franco acted maliciously in arresting the plaintiff without probable cause and prosecuting and procuring an indictment based on fraud and bad faith and with actual malice.

67. Officer John Doe One acted maliciously in arresting the plaintiff without probable cause and prosecuting and procuring an indictment based on fraud and bad faith and with actual malice.

68. Officer John Doe Two acted maliciously in arresting the plaintiff without probable cause and prosecuting and procuring an indictment based on fraud and bad faith and with actual malice.

69. As the defendants voluntarily dismissed all of the pending charges related to the subject action and the plaintiff was discharged from the jurisdiction of the Court, the defendants failed to overcome the presumption that it lacked probable cause.

70. Defendants acted with malice as defendant knowingly acted without probable cause to arrest the plaintiff. Torres v. Jones, 26 N.Y.3d 742(2016), Watson v. United States, 865 F.3d 123 2nd Cir. 2017). Malice can be inferred from the lack of probable cause. Torres, supra.

71. The defendants, officers and detective intentionally and with deliberate and reckless disregard for the truth caused plaintiff's prosecution to continue despite knowing that there was no probable cause.

72. The defendants, Police Officer Crevatas, Police Officer Romero, Detective Franco, Police Officer John Doe One and Police Officer John Doe Two intentionally and with deliberate and reckless disregard for the truth failed to further investigate and obtain additional evidence that would have ceased the prosecution of the plaintiff knowing that the evidence was falsified.

73. As a result the plaintiff was harmed, and seeks compensation in an amount to be determined at trial.

THIRD CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS UNDER 42 U.S.C. §1983 ARISING FROM DEFENDANTS' FALSE ARREST AND FALSE IMPRISONMENT OF THE PLAINTIFF

74. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 73 with the same force and effect as if fully set forth herein.

75. The defendant police officers and detective intended to confine plaintiff, plaintiff was conscious of the confinement, plaintiff did not consent to the confinement and the confinement of the plaintiff was not privileged.

76. The defendant police officers and detective authorized,

directed and instigated plaintiff's detention.

77. Police Officer Kyle Crevatas arrested plaintiff without probable cause, intended to confine plaintiff against his will, which confinement was not privileged as it was based on falsified, fabricated evidence.

78. Police Officer Crystal Romero arrested plaintiff without probable cause, intended to confine plaintiff against his will, which confinement was not privileged as it was based on falsified, fabricated evidence.

79. Detective Joseph Franco arrested plaintiff without probable cause, intended to confine plaintiff against his will, which confinement was not privileged as it was based on falsified, fabricated evidence.

80. Police John Doe One arrested plaintiff without probable cause, intended to confine plaintiff against his will, which confinement was not privileged as it was based on falsified, fabricated evidence.

81. Police Officer John Doe Two arrested plaintiff without probable cause, intended to confine plaintiff against his will, which confinement was not privileged as it was based on falsified, fabricated evidence.

82. Police Officer Crevatas arrested the plaintiff on June 4, 2018 based upon the information provided by Detective Franco that the plaintiff was in possession of and received US currency for an illegal narcotic.

83. Police Officer Romero arrested the plaintiff on June 4, 2018 based upon the information provided by Detective Franco that the plaintiff was in possession of and received US currency for an illegal narcotic.

84. Police Officer John Doe One arrested the plaintiff on June 4, 2018 based upon the information provided by Detective Franco that the plaintiff was in possession of and received US currency for an illegal narcotic.

85. Police Officer John Doe Two arrested the plaintiff on June 4, 2018 based upon the information provided by Detective Franco that the plaintiff was in possession of and received US currency for an illegal narcotic.

86. The defendant police officers and detective placed Plaintiff in handcuffs against his will, plaintiff was fully aware of the restraint and confinement and was placed in a police van and taken to central booking, Manhattan Detention Center and to the Rikers Island prison complex and held in custody until his release on July 28, 2018.

87. The defendants confinement of the plaintiff was unlawful, without probable cause, without any reasonable belief that any crimes were committed, no officers could reasonably agree that there was probable cause to arrest plaintiff, is not subject to any immunity and was solely based on the fabricated alleged observation of Detective Franco regarding any possession or sale of an illegal substance.

88. The confinement of the plaintiff was not privileged as the Certificate of Disposition Dismissal states that the arrest

and prosecution shall be deemed a nullity and the accused shall be restored in contemplation of law to the status occupied before the arrest and prosecution.

89. The police officers received information from an individual, Detective Franco, that the officers should have known was a person that was unreliable and prone to fabricating evidence.

90. The totality of the circumstances surrounding plaintiff's arrest, including Detective Franco's reputation for perjury and falsification of facts and records outweighed any probable cause they had to arrest and charge the plaintiff for the abovementioned crime as reasonable officers would disagree on whether probable cause existed to arrest plaintiff.

91. As a result, Plaintiff was severely injured and seeks compensation in a sum to be determined at trial.

FOURTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER *MONELL* UNDER 42 U.S.C. §1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICIES AND CUSTOMS

92. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 91 with the same force and effect as if fully set forth herein.

93. Defendants The City of New York and New York City Police Department established official policies directing and promoting unconstitutional practices by New York City Police Department officers and have tolerated, condoned and permitted widespread unconstitutional practices by New York City Police Department

officers, including Officers Crevatas, Romero, John Doe One, John Doe Two, and Detective Franco.

94. Defendants The City of New York and The New York City Police Department employ a municipal policy and custom known as the "Compstat" program that was instituted to reduce crime.

95. The Compstat program personnel developed the Pattern Identification Module (PIM) for each borough of the City in an attempt to reduce crime.

96. The Pattern Identification Module (PIM) was employed to identify patterns of crime by trends, clusters, method and location and keep track of perpetrator descriptions for similarities and identification amongst alleged perpetrators.

97. The Pattern Identification Module (PIM) of the Compstat program and policy would permit defendants The City of New York and the New York City Police Department to fit a series of crimes into "patterns."

98. Defendants City of New York and The New York City Police Department's Pattern Identification Module Program (PIM) would fit and identify individual and distinct crimes as patterns crimes involving the same perpetrator(s) despite being distinct and separate crimes.

99. The actions of defendants in executing multiple arrests were a direct attempt to make individual and distinct crimes fit into a pattern and to resolve open cases in relation to the number of arrests.

100. Defendants The City of New York and The New York City Police Department had a custom and policy in effect at the time of plaintiff's arrest and imprisonment of intentionally identifying distinct and separate crimes as "pattern crimes" to statistically reduce the crime rate numbers in New York City which resulted in a direct violation of plaintiff's constitutional rights as plaintiffs alleged acts were classified as a "pattern."

101. Defendants Pattern Identification Module Program (PIM), as part of the Compstat policy and program, was unconstitutional as arrests were made to fit into a "pattern" in an effort to reduce crime statistic numbers in New York City, including that of plaintiff.

102. Defendant City of New York indemnifies and shields New York Police Department officers who repeatedly and habitually violate constitutional rights, such as the officers involved in the plaintiff's arrest.

103. Defendant City of New York fails to discipline police misconduct, thereby insuring that such misconduct, corruption and continues in an effort and policy to make arrests and meet quotas.

104. Defendant City of New York implements tolerates and fails to punish unlawful and false arrests and fails to investigate its own officers for patterns of police misconduct and complaints regarding false arrests stemming from falsified records and documents.

105. These policies and practices caused the unlawful conduct of Officers Crevatas, Romero, John Doe One, John Doe Two, and Detective Franco.

106. As a result, plaintiff was harmed and injured and seeks compensation in a sum to be determined at trial.

FIFTH CAUSE OF ACTION

PLAINTIFF ANDRE BETHEA IS ENTITLED TO REIMBURSEMENT FOR LEGAL
FEES AND EXPENSES

107. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 106 with the same force and effect as if fully set forth herein.

108. Plaintiff ANDRE BETHEA seeks the reimbursement of legal fees which includes but is not limited to payment to the criminal attorney, and other ancillary expenses associated with the confinement and trial of the plaintiff.

SIXTH CAUSE OF ACTION

PLAINTIFF ATTORNEY IS ENTITLED TO REASONABLE ATTORNEY'S FEES
PURSUANT TO 42 U.S.C. SECTION 1988

109. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 108 with the same force and effect as if fully set forth herein.

110. In any action or proceeding to enforce a provision of 42 U.S.C. Section 1983, the court in its discretion, may allow the prevailing party, other than the United States, a reasonable attorney's fee as part of the costs.

111. Plaintiff's attorneys hereby request that if they prevail in the above litigation that they be awarded reasonable attorney's fees as part of the costs.

SEVENTH CAUSE OF ACTION

112. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 111 with the same force and effect as if fully set forth herein.

113. Pursuant to 42 U.S.C. 1983, plaintiff demands an award of punitive damages against the individual defendants.

114. The plaintiff has been damaged and injured in his good name and reputation, caused to suffer great humiliation, pain and suffering and anguish.

WHEREFORE, plaintiff demands judgment against defendants in an amount in excess of all lower courts which would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action and attorney's fees.

DATED: New York, New York
June 1, 2021

Respectfully submitted,



CRAIG L. DAVIDOWITZ

CRAIG L. DAVIDOWITZ, P.C.
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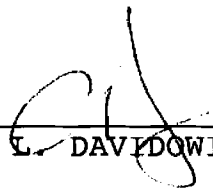
ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing **SUMMONS & VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 1, 2021



CRAIG L. DAVIDOWITZ

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ANDRE BETHEA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KYLE
CREVATAS, POLICE OFFICER CRYSTAL ROMERO,
DETECTIVE JOSEPH FRANCO, POLICE OFFICER
JOHN DOE ONE, and POLICE OFFICER JOHN
DOE TWO,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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